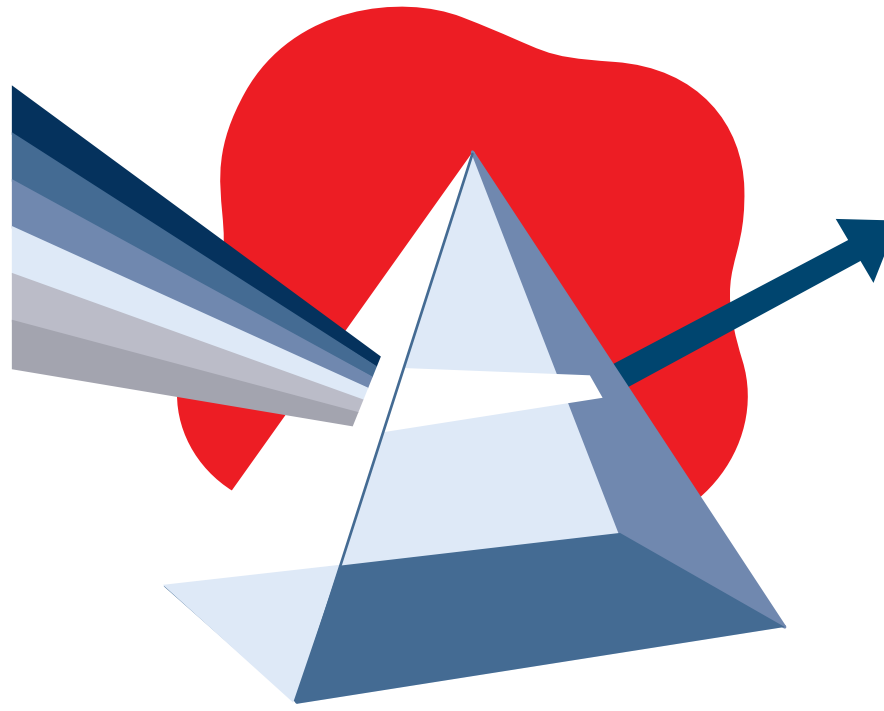


Q. HOW DO YOU SEE IT VIA THE PRISM OF INDIVIDUAL RELIGIONS?

PINKY ANAND: The UCC calls for a comprehensive statute for all sections of society, irrespective of religion. The idea that it is particularly beneficial to the Hindus is misconceived. It is important to acknowledge and understand the concerns of communities, such as the Muslims, to address them in a meaningful, inclusive manner. The All-India Muslim Personal Law Board (AIMPLB) says the UCC has remained an enigma. It also underlines how the Constitution has itself been designed—"prudently and with the intention to keep the country united"—in such a way as to be "not uniform in nature", with a built-in differential in "treatment, accommodation, adjustment" vis-a-vis territories, communities and religions. The UCC is opposed because it is seen to desecrate sacred rituals such as marriage and weaken minority groups' religious/cultural sovereignty. But the purpose of a UCC is not to implement any religious law, only to remove the backwardness any community experiences due to its religious expression. The circumstances at the time of the Constitution's birth were different from today, but it is designed to reinvent itself in ways that answer to society's needs at any point in time. That's why it incorporated the idea of a unified code governing all Indian citizens for the future.

HASINA KHAN: To say Muslims oppose the UCC is problematic. 'Muslim' is not a homogeneous category: it includes women's groups, secular groups and human rights groups demanding changes in personal laws. Such groups are also asking to have a look at the draft UCC to have direct discussions—the debate is happening without any discussion with the actual stakeholders, the marginalised and the women. Only the stances of fundamentalist religious groups like the AIMPLB are being registered: they oppose the UCC but do not represent every Muslim voice in India. All personal laws are discriminatory. Muslim personal law mandates regressive practices like unilateral talaq, polygamy and halala—though it defines marriage as a contract, it remains a tokenism biased in favour of men. It sanctions no rights to women who challenge patriarchal norms, overlooks the experiences of queer and trans people, accords no recognition to chosen families/relationships, nor factors in unmarried couples' right to adoption or the rights of individuals to choose their own inheritance laws. No government ever paved the path for gender-just laws, and organisations like the AIMPLB never pushed for reforms within the community. Those who want to maintain the unequal status quo are opposing the UCC.

> **"Historically, the inclusion of a lot of people and territories in India had been contingent on promises of preserving their identity"**
> **–SAUMYA SAXENA**

COLIN GONSALVES: Christians must not oppose the constitutionally mandated UCC. But of course, every Indian belonging to all religions, including Christianity, must oppose the BJP's UCC. They must ask the BJP to first clarify its stand on the HUF.

SAUMYA SAXENA: I'd share some of the apprehensions held by, say, the Muslims or the tribals. The inclusion of a lot of people and territories in India had historically been contingent on